

Crime Victim Protection Act, 2018

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Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Crime Victim Protection Act, 2075".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Court" means a court having authority in accordance with the prevailing law to conduct proceedings and adjudicate on an offence, and said term shall also include any other judicial body or official having authority in accordance with law to conduct proceedings and adjudicate on a particular type of offence.

(b) "Offence" means a criminal offence where the government is the plaintiff in accordance with the prevailing law, in which the victim has died or the victim has suffered loss.

(c) "Offender" means a person convicted of an offence by a court.

(d) "Fund" means the Victim Relief Fund established in accordance with the prevailing law.

(e) "Specified or as specified" means specified or as specified in the rules made under this Act.

(f) "Secondary victim" means a person who is not involved in the offence being or having been committed against a primary victim but who has suffered loss by reason of being an eyewitness to such offence, and said term shall also include the following persons who have suffered loss by reason of having knowledge of or being an eyewitness to the offence, who is the guardian of an adult primary victim and who has suffered loss by reason of having knowledge of the offence committed against a primary victim:-

(1) Guardian of the primary victim,

(2) If the primary victim is a minor, and

(3) If the person who has suffered such loss is not involved in such offence.

(g) "Minor" means a person who has not attained the age of eighteen years.

(h) "Primary victim" means a person who has died or suffered loss as a direct result of an offence, due to the age, mental illness, diplomatic immunity or immunity on positional grounds of the perpetrator as a result of which the perpetrator does not have to bear criminal liability, or the identity of the perpetrator is unknown, or no charge has been filed against the perpetrator, or the case related to the offence has been withdrawn, or the sentence imposed on the offender has been pardoned, or the person has not been convicted, or regardless of whatever family relationship the victim has with the perpetrator, and said term shall also include a person who has died or suffered loss, without being involved in the offence, in any of the following circumstances:-

(1) While performing an act to prevent a person committing an offence from committing the offence,

(2) While providing reasonable assistance and rescue with the aim of protecting a person from an offence

being committed against such person,

(3) While attempting to arrest a person committing or having committed an offence, or while providing assistance to an authorized official in the course of arresting a suspicious person, accused or offender.

(i) "Family victim" means the mother, father, husband, wife of the deceased victim who is not involved in the offence against the primary victim who died as a direct result of the offence, who are from the same joint family, or other members of the same joint family dependent on the victim.

(j) "Victim" means a primary victim, secondary victim and family victim who is a natural person.

(k) "Victim Protection Advisory Committee" means the Victim Protection Advisory Committee under Section 44.

(l) "Guardian" means the guardian of the victim appointed or established in accordance with the prevailing law.

(m) "Loss" means the following loss suffered by the victim as a direct result of an offence:-

(1) Physical injury or mutilation,

(2) Pregnancy caused by rape,

(3) Contracting a communicable disease recognized by medical science that adversely affects the physical or mental health or lifespan of the victim,

(4) Mental anxiety, emotional trauma or loss identified by a physician,

(5) Destruction of or serious damage to physical, intellectual, sexual or reproductive capacity,

(6) Adverse effect on the social, cultural or family reputation of the victim due to rape,

(7) Psychological or psychiatric damage,

Explanation: For the purpose of this sub-clause, "psychological or psychiatric damage" means an effect identified through medical examination, which does not heal or reduce within a short time and which adversely affects the health of the victim.

(8) Economic or material loss,

(9) Disfigurement of the physical appearance of the victim.

3. Persons Not Considered Victims: (1) Notwithstanding anything elsewhere written in this Act, if a person suffers loss or dies in the following circumstances, the person who has suffered such loss or died or a member of his/her family shall not be considered a victim for the purpose of this Act:-

(a) While performing any act in the course of defending the body, life, property or existence of oneself or another under private defense in accordance with the prevailing law,

(b) While a security personnel deployed or stationed under the order of an authorized official performs any act in accordance with the prevailing law in the course of performing his/her duty,

(c) While an investigation officer authorized to investigate in accordance with the prevailing law performs any act within his/her jurisdiction in the course of investigation,

(d) Any act done in circumstances where criminal liability does not have to be borne in accordance with the prevailing law,

Provided that, even if the perpetrator does not have to bear criminal liability as a result of the perpetrator's age, mental illness, diplomatic immunity or immunity on positional grounds, for the purpose of this Act, such person shall be deemed to have committed an offence and the person concerned shall be considered a

victim due to the offence.

(2) Notwithstanding anything written in sub-section (1), nothing written in this Act shall prevent the Government of Nepal from providing relief to a person who has suffered loss or died from the circumstances written in that sub-section. Chapter-2

Rights and Duties of Victims in Criminal Judicial Process

4. Right to Receive Fair Treatment: A victim shall have the right to receive courteous, dignified, fair and respectful treatment in the criminal judicial process. 5. Right Against Discrimination: In the criminal judicial process, the victim shall not be discriminated against on grounds of religion, color, gender, caste, ethnicity, sexuality, origin, language, marital status, family status, age, physical or mental illness, disability or ideological belief or any other similar grounds. Provided that, if the special needs of a minor, senior citizen or physically or mentally incapacitated victim need to be considered in the course of the criminal judicial process, special treatment towards such victim shall not be deemed to be prohibited as far as possible. 6.

Right to Privacy: (1) A victim shall have the right to privacy in the course of investigation, inquiry, prosecution and court proceedings of the following offences:- (a) Rape, (b) Incest, (c) Human trafficking, (d) Sexual abuse, (e) Other criminal offences specified by the Government of Nepal by publishing a notice in the Nepal Gazette. (2) In the case of an offence under sub-section (1), no one shall disclose the identity of the victim in any form. (3) If the victim so wishes, in the course of investigation, inquiry and court proceedings of offences under sub-section (1), if any document has to be executed, statement taken or testimony given with the victim, it shall be done as follows:- (a) By presenting the victim without disclosing his/her identity, (b) By allowing the victim to change his/her actual voice, (c) By using audio-visual communication technology in a manner that the accused cannot see or hear, (d) By making arrangements such that the accused cannot see or hear, or can only hear. 7.

Right to Information Regarding Investigation: (1) If requested by the victim, the concerned investigating officer or body shall provide information to him/her as soon as possible on the following matters:- (a) Medical, psychological, psychiatric, social, legal or any other service or counseling that the victim is entitled to receive under this Act or the prevailing law, (b) Name and full address of the prosecuting body, (c) Name, office and telephone number of the investigating officer, (d) Progress report of the investigation and inquiry, (e) Name, age, address and description of the suspect, (f) Details of the arrest of the suspect, if arrested, (g) Statements made by the suspect or any other person before the investigating officer regarding the offence, (h) Details of the suspect's escape from the custody of the investigating officer or re-arrest, if any, (i) Details of releasing a person in custody or arrested in the course of investigation from custody in accordance with the prevailing law if the investigating officer deems it unnecessary to keep such person in custody, (j) General information regarding the procedures of investigation and inquiry to be conducted in accordance with the prevailing law concerning the offence. (2) Notwithstanding anything written in clauses (d), (e), (f), (g) and (h) of sub-section (1), if providing such information to the victim is likely to adversely affect the investigation of that offence or may endanger the life, body or property of the suspect or persons associated with him/her, the investigating body shall not be obliged to provide such information to the victim, and information stating the reason why such information cannot be provided shall be given to the victim. 8.

Right to Information Regarding Prosecution: The prosecuting body or official shall, if requested by the victim, provide the following information as soon as possible regarding the offence:- (a) If a decision has been made not to prosecute, the basis and reason for the decision not to prosecute, (b) If a decision has been made to prosecute a person and a decision not to prosecute has been made in respect of any person, the name,

surname, address of the person against whom the decision not to prosecute was made and the basis and reason for the decision not to prosecute, (c) A certified copy of the charge sheet, if a decision has been made to prosecute, (d) General information regarding the court proceedings to be conducted in accordance with the prevailing law, (e) Details of any additional claims made in accordance with the prevailing law regarding persons prosecuted and persons not immediately prosecuted, and the order made by the presiding officer in that regard, (f) Information regarding the role the victim has to play as a witness, if the victim is also a witness to the offence, (g) Details of an accused who was absconding at the time of filing the charge sheet being arrested under the order of the presiding officer or appearing voluntarily, (h) Details if the Government of Nepal has decided to withdraw a case filed in court regarding the offence. 9.

Right to Information Regarding Judicial Proceedings: The prosecuting body, official or court or concerned body shall, if requested by the victim, provide the following information to him/her as soon as possible:- (a) Details if the accused has to be remanded in custody, (b) Details if the accused does not need to be remanded in custody or if the accused in custody is released from custody, (c) Date, place and time of the hearing in court, (d) Information regarding an application filed by the accused for release on bail or personal bond in accordance with the prevailing law, and details of the order made on such application, (e) Details of conditions imposed by the presiding officer while releasing the accused on deposit, bail or personal bond, or conditions imposed for the security of the victim or close relative of the victim, (f) Notice of an application filed by the accused at the appellate level against the order of the trial court for release on deposit, bail or personal bond in accordance with the prevailing law, and details of the order made on such application, (g) Details if an accused in custody for trial escapes and is re-arrested or appears voluntarily after such escape, (h) Details of supervision conditions if the accused or offender is released from custody or prison on condition of supervision, and details of any changes made to such conditions and the date such changes take effect, (i) Whether the accused or offender released from custody on supervision has complied with the supervision conditions, (j) Details if the accused or offender is transferred to another prison in accordance with the prevailing law, (k) The sentence imposed on the offender and, if imprisonment is imposed, the time for completion of the sentence, (l) Details if the offender absconds before serving the prison sentence or is re-arrested, (m) Details if the sentence imposed on the offender is pardoned, commuted, altered or reduced before the prison sentence is served, or if the offender is exempted or released from the sentence under any legal provision, (n) The body to which the victim may complain and the method of filing a complaint if the perpetrator, who was not prosecuted or not sent to prison or released from imprisonment under the condition of being under supervision in accordance with the prevailing law, violates the supervision condition, (o) Name and address of the prison where the offender is serving the sentence, (p) Details if the offender receives probation, parole or community service or open prison or any other facility of similar nature, (q) Whether the Government of Nepal has appealed against the judgment made regarding the offence, (r) Details of an order to show cause issued if an appeal has been filed by the defendant against the judgment, (s) Decision of the appellate level on an appeal filed against the judgment and its result, (t) Decision on an application filed by the offender or any other person in accordance with the prevailing law to modify the supervision conditions or cancel the supervision order, if the offender has been placed under supervision, (u) Details of the death of the accused or offender while in custody or imprisonment, (v) Details if a foreign accused or offender is sent back outside the territory of Nepal or deported to a foreign state or government by the Government of Nepal in accordance with the prevailing law.

10. Right to Safety: The victim shall have the right to be safe from attack, harm, fear, terror or threat likely to be caused to the victim or close relative of the victim or person dependent on the victim by the suspect, accused, offender or person associated with them or witnesses of the accused. 11. Right to Express Opinion:

(1) The victim shall be entitled to express his/her opinion before the concerned authority on the following matters:-

- (a) When bringing charges against a suspect in the relevant offence,
- (b) If a decision not to prosecute has to be made regarding a suspect,
- (c) If a plea agreement has to be made with the accused through bargaining in accordance with the prevailing law,
- (d) If a request has to be made to the presiding officer for a claim for remission of sentence in accordance with the prevailing law,
- (e) If additional claims have to be made in accordance with the prevailing law in the charge sheet filed before the presiding officer,
- (f) If a pre-sentence report has to be prepared in accordance with the prevailing law before imposing sentence on the offender,
- (g) When imposing sentence on the offender in accordance with the prevailing law,
- (h) If an investigation has to be conducted in accordance with the prevailing law regarding whether the accused has the mental or physical capacity to commit the offence,
- (i) If a decision has to be made to take the accused or offender into the service of a diversion program in accordance with the prevailing law,
- (j) If a decision has to be made to grant the offender probation, parole, suspended sentence, open prison, community service or any other facility of similar nature in accordance with the prevailing law,
- (k) When hearing on whether to grant permission to withdraw a case relating to an offence pending in court in accordance with the prevailing law.

(2) For expressing an opinion under sub-section (1), the concerned authority shall provide reasonable time to the victim. 12. Right to Engage Legal Practitioner: The victim may, if he/she so wishes, engage a separate legal practitioner in the criminal judicial process. 13. Right to Attend and Participate in Hearings: (1) The victim shall have the right to attend the court proceedings related to the offence and to present his/her views, unless the court orders otherwise. Provided that, if the victim is also a witness in the case, the court may prohibit him/her from attending specific proceedings until he/she has given testimony as a witness.

(2) The court shall make an order or decision taking into consideration the views expressed by the victim under sub-section (1). 14.

Right to Be in a Separate Room During Hearings: (1) The court may, in the course of hearing of the offence, provide a separate room for the victim so as to keep him/her separate from the accused, persons associated with the accused and witnesses of the accused. (2) If it is not possible and practical to provide a separate room under sub-section (1), the court shall, during the hearing, make necessary arrangements for the safety and interest of the victim so that the accused, persons associated with the accused and witnesses of the accused cannot contact the victim, unless the court orders otherwise. 15. Right to Recovery of Property: (1) Property of the victim taken into control in the course of investigation or for evidence shall be returned to the victim by the concerned investigating officer as soon as possible after the investigation work is completed. (2) Property taken into control under sub-section (1) shall not be returned before the dispute is resolved if the property needs to be presented before the court as evidence or if there is a dispute regarding the ownership or possession of the property. (3) Notwithstanding anything written in sub-section (2), if the court deems necessary, it may order the return of such property before the dispute is resolved. 16. May Hold Discussion Regarding the Case Related to the Offence: With the consent of both the victim and the accused, the court may, in the following circumstances, have discussions between the victim and the accused on any matter

related to the offence:- (a) If the court is satisfied that holding a discussion will help in resolving the dispute, (b) If the discussion is to be held under the supervision of the court, (c) If holding the discussion does not adversely affect the public interest and justice. 17. Right to Submit Written Petition: (1) If not satisfied with an order or decision of the court, if the Government of Nepal has the right to file a petition or appeal against such order or decision in accordance with the prevailing law, the victim may submit a written petition to the concerned body or authority requesting to file a petition or appeal against such order or decision. (2) A petition under sub-section (1) shall be made within fifteen days from the date of receipt of information of such order or decision. (3) The concerned body or authority having the right to file a petition or appeal against the decision, order or decision under sub-section (1) shall consider such petition and make a decision. (4) Information of the decision under sub-section (3) shall be given to the victim. 18.

Right to Information Regarding Compensation: (1) If the victim is entitled to compensation under this Act or other prevailing law, and if the victim requests information in this regard, the prosecuting officer shall inform the victim about the procedures to be followed to obtain compensation. (2) If the prosecuting officer has the authority to conduct compensation proceedings on behalf of the victim in accordance with the prevailing law, the prosecuting officer shall, at the request of the victim, take necessary action to be taken on behalf of the victim. 19. Right to Compensation and Social Rehabilitation: (1) The victim shall have the right to receive compensation for the loss suffered in accordance with this Act. (2) For the social rehabilitation of the victim, the Government of Nepal, provincial government and local level may, in mutual coordination, conduct necessary plans and programs based on available resources. 20. May File Petition or Appeal: (1) If the victim concerned is not satisfied with an order or decision made by a court in any offence, if a petition can be filed or appeal can be made against such order or decision in accordance with the prevailing law stating the basis and reason therefor, the victim may file such petition or make such appeal. (2) In relation to filing a petition or making an appeal under sub-section (1), if no period is specified in the relevant law, such petition or appeal shall be filed within fifteen days from the date of receipt of information of the order or decision. (3) The concerned authority shall make a decision considering the basis and reason mentioned in the petition under sub-section (1), and information of such decision shall also be given to the petitioner. 21. Duties of Victim: For the purpose of this Act, the duties of the victim shall be as follows:- (a) To file a complaint or give information regarding the offence before the authorized body or authority in time in accordance with the prevailing law, (b) To assist the investigating or prosecuting officer in the course of investigation and prosecution of the offence, (c) Not to fail to appear before the investigating officer or court with the aim of protecting persons involved in the offence, or not to give statements, testify or present any evidence with such aim even if appearing, (d) To provide his/her actual name, surname, address, telephone number, email address and to inform as soon as possible if there is any change therein. 22.

Respect for Rights: The authority involved in the process of investigation, prosecution, inquiry and adjudication of an offence shall pay due attention to respect and implement the rights of the victim provided under this Act and the prevailing Nepali law. 23. Petition May Be Filed for Exercise of Rights: (1) For the exercise of the rights provided under this Chapter, the victim may file a petition in the concerned High Court. (2) If it appears from a petition filed under sub-section (1) that the rights of the victim have been infringed or violated, the High Court may issue appropriate orders for the exercise of such rights. (3) While issuing an order under sub-section (2), the High Court may write to the concerned body or authority to take departmental action in accordance with the prevailing Nepali law relating to service conditions against the official who knowingly infringes, violates or curtails the rights of the victim. (4) If a letter is received under sub-section (3), the concerned authority shall take departmental action against such official in accordance with the prevailing law. 24. Proceedings Not to Be Invalidated: A decision, order or act already done in

accordance with the prevailing law, this Act or rules made under this Act shall not be invalidated or become void merely because the victim has not been able to enjoy his/her rights or such rights have been violated or denied. Chapter-3 Victim Impact Statement 25.

May Submit Victim Impact Statement: (1) If the victim so wishes, he/she may submit a victim impact statement in the format as prescribed, specifying the prescribed details, before the prosecuting officer, mentioning the loss or impact directly suffered by him/her due to the offence, before the charge sheet for the offence is filed in court. (2) If the victim is a minor or a person requiring legal guardianship or for any other reasonable reason the victim cannot submit the statement under sub-section (1) himself/herself, his/her parent, guardian or representative in accordance with law may submit such statement on behalf of the victim. (3) Notwithstanding anything written in sub-section (1), if the victim could not submit the victim impact statement before the filing of the charge sheet in court due to circumstances beyond his/her control, it shall not be barred from submitting such statement to the officer who filed the charge sheet within one month from the date of filing the charge sheet in court, attaching proof of such circumstances. (4) If the victim wishes to keep the victim impact statement under sub-section (1) or (2) confidential, the reason and cause for keeping it confidential shall also be mentioned in the statement. (5) The victim impact statement submitted under sub-section (1) shall be submitted to the concerned court by the prosecuting officer along with the charge sheet, and the victim impact statement submitted under sub-section (3) shall be submitted to the concerned court within three days of receipt thereof. 26. **May Request for Copy:** (1) An accused or offender who wishes to obtain a copy of the victim impact statement submitted to the court under sub-section (5) of Section 25 may obtain a copy of such statement from the court. (2) Notwithstanding anything written in sub-section (1), the court may refuse to give a copy of the victim impact statement in the following circumstances:- (a) If the accused is absconding, (b) If giving the copy would adversely affect the safety and privacy of the victim, (c) If the victim has requested that the victim impact statement be kept confidential. 27. **Victim Impact Statement May Be Taken as Basis:** (1) The court may also take the victim impact statement as a basis when determining the sentence for the offender. (2) Notwithstanding anything written in sub-section (1), the court shall not take as a basis when determining sentence that part of the report for which a copy has been refused under sub-section (2) of Section 26 or which has been kept confidential. 28.

Loss from Offence Not to Be Presumed Reduced: It shall not be presumed that the loss or impact to the victim from the offence is less merely because the victim has not submitted a victim impact statement under this Chapter. Chapter-4 Compensation 29. **May Order Interim Compensation:** (1) If the victim requires immediate treatment or if compensation or any type of relief amount has to be given, the court may order to provide medical treatment or interim compensation or relief amount to such person. (2) If an order is made under sub-section (1), compensation or relief amount shall be made available to the victim from the Fund. (3) The compensation or relief amount made available under sub-section (2) shall, at the time of judgment by the court, if the person charged is convicted, be ordered by the court to be deposited in the Fund by such offender within thirty-five days of the judgment. (4) If the court has issued an order under sub-section (3), such offender shall deposit the amount of compensation or relief in the Fund, and if he/she fails to deposit such amount within that period, it shall be recovered from any property of such offender as a government due within sixty days of the judgment. 30. **Compensation to Be Realized from the Offender:** (1) The court may, while finally adjudicating the case, order the offender to pay a reasonable amount as compensation to the victim. (2) While ordering compensation under sub-section (1), the court shall ascertain whether the victim has received interim compensation under Section 29 or not. (3) If the court orders compensation to be realized from the offender under sub-section (1) to a victim who has already received interim compensation under Section 29, the amount of interim compensation received by the victim shall be returned to the Fund

and only the remaining amount shall be made available to the victim. (4) Notwithstanding anything elsewhere written in this section, if it appears that the offender has no property and the victim will not receive compensation, or in a situation where the offence is established but the offender cannot be identified, or if the case related to the offence is withdrawn in accordance with the prevailing law, the court may order reasonable amount as compensation to be paid to the victim from the Fund. (5) The amount of compensation under sub-section (4) shall be made available to the victim from the Fund within thirty-five days of receipt of such order. 31.

Bases to Be Taken When Determining Amount of Compensation: The court may take any or all of the following matters as a basis when determining the amount of compensation to be made available to the victim:- (a) Reasonable expenses for medical, psychological and psychiatric counseling suffered or to be suffered by the victim, (b) Medical treatment expenses suffered or to be suffered by the victim, (c) Unexpected transportation expenses suffered by the victim, Explanation: For the purpose of this clause, "unexpected transportation expenses" means reasonable expenses incurred in transportation when the victim has to travel a distance of more than ten kilometers to obtain such service because counseling or medical treatment services immediately required to reduce the loss suffered by the victim as a direct result of the offence are not available within a distance of ten kilometers from the victim's residence, workplace or scene of incident. (d) Legal practitioner's expenses suffered by the victim, (e) Damage to the personal capacity of the victim due to the direct result of the offence, (f) Economic loss suffered or to be suffered by the victim, Provided that if the victim has received or is to receive compensation for such economic loss from insurance in accordance with the prevailing law, compensation shall not be given under this clause. (g) Expenses incurred or to be incurred for repair or new purchase of personal items damaged, (h) Lost or damaged income earning capacity of the victim as a direct result of the offence, (i) Adverse effect on the physical appearance of the victim, (j) Damage to the physical, intellectual, sexual or reproductive capacity of the victim, (k) In the case of the offence of rape, adverse effect on the social, cultural or family reputation or relationship of the victim from such offence, (l) If the victim becomes pregnant due to rape, expenses incurred for abortion in accordance with the prevailing law or for childbirth and raising the child, (m) Medical treatment expenses if abortion occurs due to the offence, (n) Reasonable expenses incurred by the victim in good faith to avoid further offences that may be committed against him/her, where special circumstances apply, Explanation: For the purpose of this section, "special circumstances" means a situation where the victim suffers or has to suffer abnormal effect or impact as a direct result of an offence committed against the victim by taking undue advantage of the physical or mental condition of the victim at the time of the offence or the special location of the victim's residence, workplace or scene of incident. (o) Mental or emotional damage suffered by the victim, (p) Other appropriate basis according to the nature and effect of the loss, (q) Reasonable expenses incurred by the victim in good faith to protect the primary victim from further offences, in the case of victims where special circumstances apply, (r) Loss of parental guardianship by minor children.

33. Compensation Not to Be Received in More Than One Capacity: A person shall not be entitled to receive compensation under this Act in more than one form or capacity as a primary victim, secondary victim and family victim or in any other form. **34. Compensation Not to Be Provided:** Notwithstanding anything elsewhere written in this Act, compensation under this Act shall not be provided to the following victims:-

- (a) A person who commits, attempts, abets or conspires to commit, or assists in committing, or is an accomplice involved in the offence in respect of which compensation is to be received,
- (b) A person claiming compensation under this Act as a primary victim, where the offence against him/her occurred at the time of or due to his/her involvement in any other offence,

(c) Family victim of a person who died while going to commit an offence against someone or due to the same reason,

(d) A person entitled to compensation under third party insurance provisions in respect of loss caused by a traffic accident in accordance with the prevailing law,

Provided that it shall not be a bar to providing compensation under this Act if a person is killed or harmed using a motor vehicle with the intention of killing or causing harm.

(e) A secondary victim or family victim who has knowledge or has reasonable cause to know that the primary victim was involved in any other offence,

Provided that this provision shall not apply in the case of a person who was a witness at the time of the offence for which compensation is to be received.

(f) A victim for whom treatment required due to the offence is provided free of cost by the government or the government bears the expenses and there is possibility of recovery of such person,

Provided that it shall not be a bar to providing compensation for loss other than medical consultation or treatment expenses.

(g) A prisoner victim who suffers mental loss due to an offence committed against him/her while in prison serving a prison sentence in accordance with the prevailing law,

Provided that it shall not be a bar to providing compensation including for mental loss if the imprisonment is only due to inability to pay a fine imposed in accordance with the prevailing law.

(h) A person convicted of an offence against the state under the prevailing law,

(i) A person convicted of organized crime under the prevailing law,

(j) A victim of an offence provoked by the victim or caused by the conduct of the victim, except a minor or mentally imbalanced victim,

(k) A person who does not file a complaint or report, files a false complaint or report, does not assist the investigating or prosecuting officer, or gives statements, testimony or presents evidence with the aim of protecting persons involved in the offence, or gives statements or testimony in court contrary to statements made before the investigating officer with such aim, in relation to investigation or court proceedings concerning the offence,

(l) A person who has received or appears to receive financial assistance or compensation from any other source of the Government of Nepal in respect of the offence for which compensation is to be received,

(m) A person to whom providing compensation appears unjust from the perspective of justice,

(n) A person who submits a petition stating unwillingness to receive compensation,

(o) A person who has outstanding fine, damages or any other amount under a court order or revenue or other amount payable to the Government of Nepal,

(p) If found to have filed a false complaint,

(q) A victim where both the victim and perpetrator were members of the same joint family at the time of the offence and the victim appears able to receive the benefit of compensation,

Provided that it shall not be a bar to providing compensation to the victim under this clause in the following circumstances:-

(1) If due to the victim's age or mental illness, he/she does not have to bear criminal liability in accordance with the prevailing law,

- (2) If there is no legal provision for the victim to receive compensation from the offender in such offence, or even if there is, it is proved that the victim has separated and lives separately from the joint family of the perpetrator after the offence, where the perpetrator or joint family has no property or due to any other reasonable reason the victim does not appear to be able to receive compensation from the perpetrator, or
- (3) A woman victim of rape or a child born from her.

35. Compensation Amount Gets First Priority: Notwithstanding anything written in the prevailing law, if the offender has to pay compensation to the victim in addition to fine, government damages, tithe, twentieth, civil damages or any other amount as per the court's judgment, the compensation receivable by the victim under this Act shall be given the first priority from the amount recovered from the offender. 36. To Be Recovered as Government Due: If the amount of compensation ordered by the court to be paid to the victim from the offender under this Act is not made available to the victim by the offender, the court shall recover it from the movable and immovable property of the offender as a government due and make it available to the victim. 37. Amended by the Act to Amend Some Nepal Acts Relating to Good Governance Promotion and Public Service Delivery, 2081. Persons Entitled to Compensation if Victim Dies: If the victim dies before receiving the compensation amount under this Act, such amount shall be received by his/her same joint family husband or wife, sons or daughters, or father or mother. 38. Amount Previously Received as Compensation to Be Deducted: While making payment of compensation amount to the victim under this Act, the amount previously received by him/her as interim compensation shall be deducted and